

Sandeep Tiwari v. Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 1 May 2025 · 2025:AHC:68914-DB · WRIT - C No. 12618 of 2025 ·
Recovery notices quashed; personal hearing, then final assessment.

HEADNOTE

Recovery citations issued without a final assessment order under clause 6.8 of the U.P. Electricity Supply Code, 2005 cannot stand. Where the licensee concedes that no final assessment was passed, the recoveries are quashed and the consumer is to be given a personal hearing before any final assessment.

FACTUAL SUMMARY

Sandeep Tiwari challenged two recovery citations dated 4 May 2023 issued by the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., for Rs. 7,16,479 and Rs. 60,820, alleging they were raised without a final assessment order under clause 6.8(1)(b) of the U.P. Electricity Supply Code, 2005 after an inspection on 7 January 2023, and sought to restrain coercive recovery. On the listed date, counsel for the respondents conceded that no final assessment order had been passed.

REUSABLE CONSTRUCTIONS

1. Recovery notices issued without a final assessment order under clause 6.8 of the U.P. Electricity Supply Code, 2005 cannot be sustained.
2. Where no final assessment has been passed, the recoveries are quashed and the consumer must be given a personal hearing before any final assessment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

recovery without final assessment

HOLDING

Recovery notices issued without a final assessment order under clause 6.8 of the Supply Code, 2005 cannot be sustained. On the licensee's concession that no final assessment had been passed, both citations were quashed; the consumer is to appear for personal hearing, after which the authority may pass a final assessment in accordance with law.

FLAG Petitioner cited clause 6.8(1)(b); the Code's 6.8 is not numbered as (1)(b).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 7 JANUARY 2023 INSPECTION ESTABLISHED UNAUTHORIZED USE, AND THE QUANTUM OF ANY FINAL ASSESSMENT

Remitted for personal hearing and final assessment; merits of the inspection and claimed amounts were not examined.